

Narendra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 February 2020 · WRIT - C No. - 4697 of 2020 · **Writ disposed; petitioner relegated to Clause 6.5 representation before the Executive Engineer; coercive action on the 14.10.2019 recovery citation stayed for two months.**

HEADNOTE

Where a recovery citation is challenged as a disputed electricity bill, the High Court relegated the petitioner to a detailed representation before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law within two months, and stayed coercive recovery for that period. The Court did not decide whether the petitioner was a consumer or the correctness of the demand.

FACTUAL SUMMARY

Narendra approached the Allahabad High Court against a recovery citation dated 14 October 2019 demanding Rs.70,030. He asserted that he was not even a consumer of electricity under the Electricity Act. Counsel for the respondents submitted that the controversy concerned only the amount of the bill, a matter the Executive Engineer could decide under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-alternate-remedy

HOLDING

A dispute as to the amount of an electricity bill is to be dealt with by the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ court directed the petitioner to file a detailed representation before the Executive Engineer, who shall consider it and pass an appropriate order in accordance with law within two months, and directed that no coercive action be taken on the recovery citation for that period. ¶ 1

PRINCIPLE TAGS

6.5-representation-as-appropriate-remedy The Court directed the petitioner to file a detailed representation before the Executive Engineer under Clause 6.5 and required that officer to consider it and pass an appropriate order in accordance with law within two months. ¶ 1

clause-6.5-alternate-remedy The writ was disposed of without deciding the demand on merits, relegating the petitioner to the Clause 6.5 statutory representation, with only a two-month stay of coercive recovery. ¶ 1

billing-dispute-question-of-fact-executive-engineer-clause-6.5 The Court accepted the licensee's submission that the controversy was as to the amount of the bill, a matter for the Executive Engineer under Clause 6.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS A CONSUMER UNDER THE ELECTRICITY ACT

Asserted in the petition; the Court did not decide the point and treated the matter as a bill-amount dispute under Clause 6.5. ¶ 1

NOT DECIDED — CORRECTNESS OF THE RECOVERY CITATION OF RS.70,030 DATED 14.10.2019

Relegated to the Executive Engineer under Clause 6.5 without a merits determination. ¶ 1

